

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Civil Revision No. 31213/2021

Sheikh Anwar ul Haq

Versus

Abdul Ghaffar etc.

J U D G M E N T

Date of hearing:	19.06.2025
Petitioner by:	Mian Muhammad Saeed, Advocate.
Respondents No.1 and 2 by:	Ch. Zulfiqar Ali, Advocate.
Respondent No.3 by:	Proceeded against <i>ex parte</i> on 10.10.2023.

MALIK WAQAR HAIDER AWAN, J:- Through this Civil Revision, petitioner has thrown challenge to judgments and decrees dated 08.10.2020 and 17.02.2021 passed by learned Civil Judge Class-I, Faisalabad and learned Additional District Judge, Faisalabad. Through the said judgments and decrees, both the learned courts below concurrently decided the *lis* against the petitioner.

2. Concisely, facts giving rise to the present Civil Revision are that petitioner filed a suit for declaration wherein he also sought recovery of possession of the suit property i.e. Shop No.10 measuring 7x5 situated at New Ghala Mandi, Madina Market, Amin Pur Bazar, Faisalabad. Respondents No.1 and 2 (defendants No.1 and 2 in the suit) filed a joint contesting written statement. Respondent No.3 (Municipal Corporation Faisalabad through Town Municipal Officer, Faisalabad) (defendant No.3 in the suit) also filed written statement

and prayed for dismissal of the suit to its extent. Out of divergent pleadings of the parties, as many as 07 issues were framed. Respective oral as well as documentary evidence was led by both the parties with regard to their pleadings. Upon conclusion of trial, suit of the petitioner was dismissed by learned trial court vide judgment and decree dated 08.10.2020. Feeling dissatisfied, petitioner filed an appeal which also met the same fate vide judgment and decree dated 17.02.2021 passed by learned appellate court. Hence, this Civil Revision.

3. Learned counsel for the petitioner, at the very inception of arguments, submits that petitioner and respondent No.1 are real brothers. Contends that vide Surveys No.9 and 10, respondent No.1 and petitioner were allotted Shops No.9 and 10, respectively. Refers to paragraph No.1 of the written statement filed by respondent No.3 to highlight that allotment in the name of petitioner was admitted therein. Argues that oral evidence cannot take precedence over pleadings and documentary evidence. Relies upon Hassanally and others v. Noor Muhammad through his Legal Heirs and another (1995 MLD 1458). Further contends that witnesses of petitioner were cross-examined but nothing adverse to his case could be incurred during cross-examination. While making reference to Ex.P-1 produced by PW-4 (Muhammad Saleem, Patwari Municipal Corporation, Faisalabad), it has been contended that Shops No.9 and 10 were mentioned against the names of respondent No.1 and petitioner. Avers that respondent No.1 took a specific plea in paragraph No.2 of his written statement that when Survey took place, he obtained two slips, one of his own and other in the name of his brother and against those slips got shops with possession but when allegedly it is mentioned in the written statement that petitioner came to know regarding this fact, he greedily started demanding the shop from respondent No.1 whereupon respondent No.1 spent 6/7 lac rupees and got him another shop where the petitioner is running his business of betel leaf/cigarettes. Adds that

there is an admission on the part of respondent No.1 that allotment of Shop No.10 is in the name of petitioner and took a specific plea that he spent money for purchasing another shop for the petitioner (who is Benamidar qua Shop No.10). Refers Ex.P-2 (original special power of attorney), Ex.P-3 (agreement) and Ex.P-4 (copy of receipt) to maintain that other shop, which is not subject matter of the suit, was also purchased by the petitioner himself as he was shown as owner in these documents, whereas respondent No.1 was mentioned as marginal witness of all the three documents (Ex.P-2 to Ex.P-4). To strengthen his plea, learned counsel relies upon Said Amin v. Mst. Nayab and others (2011 CLC 309) and Manzoor Hussain and another v. Shah Nawaz through L.Rs. and others (2014 CLC 77). Asserts that through affirmative evidence, petitioner has proved his case. While referring to Ex.P-2 to Ex.P-4 and Article 49 of the Qanun-e-Shahadat Order, 1984 (P.O. No. X of 1984) (hereinafter called “**the Order**”), learned counsel signifies that mentioning of documents (Ex.P-2 to Ex.P-4) is also relevant to prove his stance. Further submits that respondent No.1 never challenged allotment in the name of petitioner and no valid reason was given by both the learned courts below to non-suit the petitioner. Urges that both the learned courts below in a very casual manner mis-interpreted the word “title” and while doing so illegally non-suited the petitioner. Refers Article 113 of the Order to maintain that admitted facts need not to be proved. Also submits that utility bills and electricity meter in the name of any person could not be used as ownership. Relies upon Abdul Razzaq v. Muhammad Riaz and 5 others (2003 YLR 275) and Amjad Ali and others v. Anwar Shah and others (2025 SCMR 211). Adds that concurrent findings are not sacrosanct and if any illegality is committed by courts could be reversed. Relies upon Ghulam Muhammad and 3 others v. Ghulam Ali (2004 SCMR 1001), Sultan Muhammad and another v. Muhammad Qasim and others (2010 SCMR 1630) and Manzoor Ahmed and others v. Aurangzeb (2011 SCMR 1322).

4. Conversely, learned counsel for respondents No.1 and 2 submits that there is no title document in favour of petitioner which is the basic requirement to maintain suit for declaration under Section 42 of the Specific Relief Act, 1877 (hereinafter called “Act 1877”). Contends that Ex.P-1 is not a title document. Argues that utility bills and electricity meter are in the name of respondent No.1 and he is receiving rent of the property from respondent No.2. Makes reference to Ex.P-1 wherein PW-4 (Muhammad Saleem, Patwari Municipal Corporation, Faisalabad) narrated that at that time the property was in the ownership of City District Government.

5. Heard. Record perused.

6. The whole controversy revolves around Section 42 of the Act 1877. The same is reproduced hereunder:-

42. Discretion of Court as to declaration of status or right. –
(1) Any person entitled to any character, or any right to any property, may institute a suit against any person denying, or interested to deny, his title to such character or right, and the Court may in its discretion make therein a declaration that he is so entitled and the plaintiff need not in such suit ask for any further relief:

Provided that no Court shall make any such declaration where the plaintiff, being able to seek further relief than a mere declaration of title, omits to do so.

(2) Notwithstanding anything contained in any other law for the time being in force, a suit filed under sub-section (1) shall be decided by the Court within six months and the appellate court shall decide the appeal not later than ninety days, as the case may be.”

(Emphasis supplied)

7. To understand the meanings of “title” and “entitled” in the context of facts of instant case which have not been exclusively defined in the Act 1877, ordinary and legal meaning is to be taken into consideration with reference to Section 42 of the Act 1877. “Title” refers to a legal right of ownership or entitlement to property which

indicates who has the lawful authority or claim over the property in question amongst the contesting parties qua their entitlement. “Entitlement” is to be construed in a broader meaning and cannot be restricted to ownership only.

8. It is evident from the written statement filed by respondents No.1 and 2 that there is an admission regarding allotment in the name of petitioner. Paragraph No.2 of written statement (factual objections) filed by respondents No.1 and 2 is reproduced hereunder:-

عذرات واقعی!

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2 یہ کہ ضمن نمبر 2 سے متعلق عرض ہے کہ مد عالیہ نمبر 1 جو توں کی چھا بڑی لگنا تھا جب سروے ہوا تو مد عالیہ نمبر 1 نے دو پرچیاں حاصل کر لیں ایک پرچی اپنے نام ایک پرچی بے نامی طور پر بھائی کے نام حاصل کر لی اور دونوں پرچیاں کے جملہ اخراجات مد عالیہ نمبر 1 نے اپنی گھر سے خود ادا کر کے پرچیاں حاصل کیں اور دونوں پرچیوں پر دو کانات کا قبضہ حاصل کر لیا اور دوکان بنالی اور کاروبار شروع کیا الاٹمنٹ سے لے کر اب تک مد عالیہ نمبر 1 ہی کام کر رہا ہے۔ مدعی کو جب علم ہوا کہ میرے بھائی نے میرے نام پر دوکان حاصل کی تھی تو اس نے طمع نفسانی اور لالچ میں آکر دوکان کی ڈیمانڈ شروع کر دی۔ حالانکہ مد عالیہ نمبر 1 نے مدعی کو چھ / سات لاکھ روپیہ گھر خود سے خرچ کر کے علیحدہ دوکان لے کر دی جس میں مدعی شروع سے لے کر آج تک پان سگریٹ کا کام کر رہا ہے۔ اگر مدعی نے سروے پرچی کی الاٹمنٹ حاصل کی ہوتی تو مدعی قابض بھی ہوتا اور کرایہ کا شروع سے مطالبہ کرتا اور دوکان کا مطالبہ کرتا۔

(Emphasis supplied)

9. It is unequivocally clear from the above-mentioned paragraph that allotment in the name of petitioner had not been denied but a specific plea was taken that petitioner was “benami” allottee and respondent/defendant in alternate spent money and got him a shop but did not bother to prove his plea taken in the written statement.

10. Likewise, paragraph No.1 of the written statement filed by respondent No.3 also supports the version of petitioner/plaintiff which is reproduced as under:-

واقعاتی جواب:

یہ کہ درست ہے مدعی پر اپرٹی متذکرہ کا الائی ہے۔ جبکہ اب پر اپرٹی کا انتظام و انصرام سٹی ڈسٹرکٹ گورنمنٹ کے پاس ہے۔

(Emphasis supplied)

11. In oral evidence, PW-4 (Muhammad Saleem, Patwari Municipal Corporation, Faisalabad) concurred the stance of petitioner as well as position of respondent No.3 in the written statement. PW-4 also produced Ex.P-1 containing names of allottees alongwith their parentage wherein against Shop No.10, name of petitioner is reflected. Relevant portion of his cross-examination is as follows:-

دوکان نمبر 10 انوار الحق ولد مہر دین کو الائی ہوئی تھی۔ یہ الاٹمنٹ ابھی منسوخ نہ ہوئی ہے۔ یہ سال 1981 میں الائی ہوئی تھی۔ بازاروں میں موجود ریڑھی چھابڑی والوں کو تجاوزات ہٹاؤ مہم کے سلسلے 5 x 7 فٹ دوکانیں الائی کی گئی تھیں۔ دوکانوں والوں کا رقبہ ملکیتی سٹی ڈسٹرکٹ گورنمنٹ ہے۔ دوکان نمبر 9 عبدالغفار ولد میاں محمد دین کے نام پر ہے۔ فائل متعلقہ ورق سروے رجسٹر بعد از سروے اصل Ex P1 پیش کر رہا ہوں۔

(Emphasis supplied)

12. In the light of above, it could be said with certainty that both the learned courts below failed to read the pleadings as well as evidence of parties and also flopped to apply Article 113 of the Order which provides “admitted facts need not to be proved”.

13. Record divulges that respondent No.3 has neither opposed the stance of petitioner nor is there any conflict or competition amongst them regarding the ownership of the property rather it is between petitioner and respondent No.1 to the effect that who is the actual allottee of the disputed property. It is very much clear and obvious from the afore-referred record that petitioner is the allottee of the disputed Shop No.9 situated at New Ghala Mandi, Madina Market, Amin Pur Bazar, Faisalabad.

14. Both the learned courts below failed to interpret and evaluate the words “title” and “entitle” in its true perspective while judging the case between two competitors i.e. petitioner and respondent No.1. While doing so, both the learned courts below mis-interpreted the said expressions due to which petitioner was non-suited. The actual owner of disputed shop is Tehsil Municipal Administration, Laylpur Town, Faisalabad whose employee (Muhammad Saleem, Patwari) appeared in the witness box as PW-4 and also produced list of allottees of shops situated at New Ghala Mandi, Madina Market, Amin Pur Bazar, Faisalabad as Ex.P-1 wherein name of petitioner against Shop No.10 is clearly reflected. Likewise, name of respondent No.1 is reflected against Shop No.9 whereas he has been claiming allotment of both shops which has been belied by the record referred to above. Respective allotments in favour of petitioner and respondent No.1 are their entitlement and right and equate title as they can sell/transfer their allotment rights to any person definitely informing the City District Government, Faisalabad which is owner of the suit property.

15. As regards the case-law cited by learned counsel for the petitioner, I am fortified with the view taken in Amjad Ali and others v. Anwar Shah and others (2025 SCMR 211) where it has been *inter alia* held as under:-

The argument of the learned counsel for the respondents is that they are in possession of the suit house and the electricity consumption meter is also in their name will not bear any fruit for them and also will not affect the merits of the case. Such entries can never be termed as equivalent to ownership.

16. Light can also be taken from the dictum laid down in Hassanally and others v. Noor Muhammad through his Legal Heirs and another (1995 MLD 1458), relevant portion of which is reproduced hereunder:-

Entries in the Revenue Record are prima facie good evidence of title unless rebutted by some better evidence by the other side. In

the present case oral evidence has been produced by the respondents as against the documentary evidence coming from public record produced by the applicants. Entries in the Revenue Records since 1933 in favour of the applicants remain unrebutted and could not be ignored.

17. Epitome of the above discussion is that judgments and decrees passed by both the learned courts below are result of mis-reading and non-reading of record and are not sustainable in the eye of law as a sequel to which this Civil Revision is partially **allowed**; judgments and decrees dated 08.10.2020 and 17.02.2021 passed by learned Civil Judge Class-I, Faisalabad and learned Additional District Judge, Faisalabad are hereby set aside. Resultantly, suit titled Sheikh Anwar-ul-Haq v. Abdul Ghaffar etc. filed by petitioner only to the extent of declaration and possession is decreed.

(MALIK WAQAR HAIDER AWAN)
JUDGE

Signed
30.06.2025

Abis Ali

APPROVED FOR REPORTING

JUDGE